

25STCP04139 25STCP04139

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Case Number: 25STCP04139 Hearing Date: September 17, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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GLOBAL TEL*LINK CORPORATION,

Petitioner(s),

vs.

CALIFORNIA

DEPARTMENT OF CORRECTIONS AND REHABILITATION, et al.,

Respondent(s).

Case No.:

25STCP04139

Hearing Date:

September 17, 2026

[TENTATIVE] ORDER RE:

MOTION TO COMPEL FURTHER RESPONSES

Petitioner Global Tel*Link Corporation ("Petitioner") moves to compel further responses from respondents California Department of Corrections and Rehabilitation ("CDCR") and California Department of Technology ("CDT"), (collectively, "Respondents").

The motion is granted in part.

I.

Background

1.

Factual Allegations

The first amended petition ("FAP") alleges in pertinent part as follows:

a.

The RFP

On July 15, 2024, California and CDCR, through CDT, published Request for Proposal No. C5611826 ("RFP"). (FAP, ¶ 19.) The RFP provided that Respondents would choose up to three responsible and qualified offerors to participate in the negotiation process. (FAP, ¶ 20.) Respondents were not permitted to waive material deviations or defects in a proposal to advance an offeror to the negotiation phase. (FAP, ¶ 20.) During negotiations, Respondents would discuss aspects of an offeror's proposal that could enhance the proposal and its potential for award, but negotiations were "not intended to allow a Bidder to completely rewrite their proposal." (FAP, ¶ 21.) Respondents must make the award by using the original criteria in the RFP or by revising the evaluation criteria based on the results of the negotiations, informing all bidders of the revised criteria, and providing an opportunity to submit a best and final offer ("BAFO") based on those criteria. (FAP, ¶ 21.)

On October 28, 2024, Respondents closed the bidding pool. (FAP, ¶ 22.) Only Petitioner and Securus Technologies, LLC ("Securus") submitted timely final proposals, and Respondents invited both to negotiate. (FAP, ¶ 22.)

On or about December 13, 2024, Respondents requested BAFOs from both Petitioner and Securus. (FAP, ¶ 23.) Respondents issued a BAFO addendum and updated the RFP, then conducted BAFO clarifications. (FAP, ¶ 23.)

Respondents conducted a final evaluation to determine the bidder with the highest points that passed every mandatory requirement. (FAP, ¶ 24.)

On February 21, 2025, Respondents notified Petitioner they would award a contract to Securus. (FAP, ¶ 25.)

b.

Award Challenge

On April 1, 2025, Petitioner filed a petition for traditional mandamus challenging the award which remains pending. (FAP, ¶ 26.) Petitioner contended (a) Securus's proposal was nonresponsive because it offered an untested technology, (b) Securus's proposal failed to meet a mandatory requirement to provide a Letter of Bondability, and (c) Securus's financial status rendered it a non-responsible bidder. (FAP, ¶ 27.)

Securus estimates it will complete the contract transition by March 2026. (FAP, ¶ 28.) If the transition is completed, it will become difficult to unwind the award. (FAP, ¶ 30.)

c.

CPRA Requests

On February 24, 2025, Petitioner submitted to CDT a California Public Records Act ("CPRA") request ("February Request") seeking (a) a complete copy of each response to the RFP and financial offer; (b) scoring documentation; (c) communication that assisted in the award; and (d) a copy of the fully-executed, current contract with the winning vendor, along with any amendments. (FAP, ¶¶ 31-32.)

On March 6, 2025, Petitioner submitted to CDT a CPRA request ("March Request") for further documents and followed up regarding the February Request. (FAP, ¶ 34.) The same day, CDT unilaterally extended time to respond to both requests. (FAP, ¶ 34.)

By March 18, 2025, CDT had not responded. (FAP, ¶ 35.)

Petitioner sent a follow-up. (FAP, ¶ 35.) CDT responded that it was making the first production pursuant to the February Request, but some documents would be withheld. (FAP, ¶ 35.) CDT did not identify which records it was withholding or explain the specific grounds justifying the withholdings. (FAP, ¶ 35.) The March 18, 2025 production contained no communications. (FAP, ¶ 36.)

On March 19, 2025, Petitioner identified absent document categories and sought identification of documents withheld, including the withholding justification. (FAP, ¶ 37.)

Petitioner sent a follow-up on March 24, 2025. (FAP, ¶ 38.)

On March 26, 2025, CDT produced additional records but stated there were no responsive records to the communications request. (FAP, ¶ 39.) CDT indicated it did not interpret the March Request for “all documents and communications with bidders” to include “any and all evaluation documents and communications related to this procurement.” (FAP, ¶ 39.) CDT stated that it withheld financial statements and documents under Government Code section 7927.705. (FAP, ¶ 39.) CDT stated that this production concluded its responses. (FAP, ¶ 39.)

On April 4, 2025, Petitioner submitted a new CPRA request (“April 4 Request”) for “[a]ny and all evaluation documents and communications related to this procurement for the time period of July 15, 2024, until February 21, 2025.” (FAP, ¶ 40.)

On April 7, 2025, Petitioner sent another CPRA request (“April 7 Request”) for documents and communications relating to the implementation plan and transition plan. (FAP, ¶ 41.)

On April 14, 2025, CDT provided a partial production to the April 4 Request. (FAP, ¶ 42.)

On April 17, 2025, CDT responded to the April 7 Request stating it had no responsive documents and that it would close the request. (FAP, ¶ 41.)

On April 30, 2025, CDT provided the remaining production for the April 4 Request. (FAP, ¶ 42.) Some documents were redacted from this

production, and some withheld. (FAP, ¶ 42.) One email produced stated, “All, in preparing for the contract award, I will be deleting everything from the Sharepoint drive. Please be sure to delete anything you may have as well. This will ensure the official records are the ones available for public record requests.” (FAP, ¶ 42.) This production stated that it concluded the request. (FAP, ¶ 42.) CDCR produced some communications that CDT did not, despite CDT being party to those communications. (FAP, ¶ 43.)

On April 22, 2025, Petitioner submitted 15 CPRA requests to CDCR (“April 22 Request”). (FAP, ¶ 45.) CDCR failed to respond within ten days. (FAP, ¶ 47.)

On May 8, 2025, CDCR notified Petitioner that it required additional time to respond, promising a response by August 1, 2025. (FAP, ¶ 48.) CDCR did not respond by August 1, 2025.

On August 4, 2025, Petitioner requested the status of the production. (FAP, ¶ 50.)

On August 6, 2025, CDCR requested a narrowed scope. (FAP, ¶ 51.)

On August 11, 2025, Petitioner sent a communication objecting to deficiencies in CDCR’s response but agreed to confer regarding proposed search terms to expedite compliance. (FAP, ¶ 52.)

On August 13, 2025, CDCR stated that it had identified responsive records and proposed search terms and provided some documents that Petitioner had already received from CDT. (FAP, ¶ 53.)

On August 15, 2025, Petitioner provided revised search terms. (FAP, ¶ 54.) The same day, CDCR sent correspondence noting it would begin providing documents by August 29, 2025, and non-exempt non-communications by September 12, 2025. (FAP, ¶ 54.) Rolling productions on communications would begin August 29, 2025. (FAP, ¶ 54.)

On August 20, 2025, CDCR accepted Petitioner’s proposed search term revisions and committed to production timeframes. (FAP, ¶ 55.)

On August 22, 2025, CDCR produced documents responsive to

one of the April 22 Requests, which was for scoring documentation. (FAP, ¶ 56.) CDCR did not provide individual evaluators' comments. (FAP, ¶ 56.)

On August 27, 2025, CDCR wrote that it was providing documents but did not do so. (FAP, ¶ 57.)

On August 29, 2025, CDCR provided documents responsive to one of the requests. (FAP, ¶ 58.)

On September 4, 2025, Petitioner noted that it had not received requested communications. (FAP, ¶ 60.) CDT stated that it would respond the next day. (FAP, ¶ 60.) It did not do so.

On September 5, 2025, CDCR sent Petitioner a letter stating it would provide the rest of the April 22 Request production by September 19, 2025. (FAP, ¶ 61.) CDCR would provide modified searches by September 12, 2025, and responsive communications by October 3, 2025. (FAP, ¶ 61.)

On September 19, 2025, CDCR reported that it had no records responsive to Request 9. (FAP, ¶ 62.) Request 9 was for "[a]ll documents and communications with bidders, including but not limited to clarifications, discussions, and/or negotiations." (FAP, ¶ 62.) Such records must exist, because there were responsive communications to Petitioner in the bidding process. (FAP, ¶ 62.)

On September 25, 2025, Petitioner requested an update on revised search terms for certain requests. (FAP, ¶ 63.) CDCR responded once without substance, then did not respond again. (FAP, ¶ 63.)

On October 3, 2025, CDCR produced eight Confidential Agreements and nothing else, including no communications. (FAP, ¶ 64.)

On October 17, 2025, CDCR produced 16 documents, 12 of which were confirmation and transmission emails for those Confidentiality Agreements, one of which was a duplicate of the RFP, and three of which were documents involved in drafting the evaluation worksheet. (FAP, ¶ 65.)

On August 27, 2025, Petitioner submitted additional CPRA requests ("August Request"). (FAP, ¶ 66.) CDCR confirmed receipt. (FAP, ¶ 66.) Petitioner included proposed search terms, but CDCR ignored the proposed terms.

(FAP, ¶ 66.)

On September 9, 2025, CDCR indicated it would begin production on December 5, 2025. (FAP, ¶ 67.)

Petitioner has still not received crucial productions. (FAP, ¶ 68.)

2.

Procedural History

Petitioner filed the petition on October 23, 2025. Proofs of service filed October 24, 2025, show Petitioner served the summons and petition on CDCR by personal service on October 24, 2025 and on CDT by substituted service on the same day.

On October 29, 2025, Petitioner filed its FAP. A notice and acknowledgement of receipt file November 19, 2025 shows CDT received the summons and petition by the same date. On December 17, 2025, CDCR and CDT each filed their answer to the FAP.

On October 31, 2025, the Court denied Petitioner's ex parte application for an order pursuant to Government Code section 7923.100 on the basis that such relief cannot be obtained ex parte but must rather be sought through the standard writ process.

On March 5, 2025, the Court stayed discovery until March 19, 2026, and ordered CDCR to provide the first 170 hits to particular search terms which would yield about 10,500 hits, to be produced by March 13, 2026.

On March 19, 2026, the Court granted Petitioner leave to file a second amended petition ("SAP"). Respondents' answers to the FAP were deemed their answers to the SAP. The Court further ordered all discovery be completed by May 19, 2026, including review and production. The Court ordered that if CDCR had not completed its production by May 19, 2026, the CDCR representative responsible for the request and production must appear on May 28, 2026.

On July 21, 2026, the

Court ordered CDCR to produce a Vaughn index for an agreed-upon subset of withheld records, prepared on a document-by-document basis. The index must identify, for each withheld record, the document's date, author, recipient or recipients, general subject matter, the type of the record, each exemption claimed for each withheld portion, and factual justification stated with sufficient specificity to permit meaningful adversarial testing and judicial review. The Court further directed that bare descriptors such as "nonresponsive," "deliberative process," or "privilege," without supporting factual explanation, would be insufficient. The Court further ordered that if CDCR were unable to provide information for any of the required categories, it must briefly explain, within the index, the reason for the omission.

The parties agreed the index would be limited to records predating March 1, 2025 and exclude documents withheld solely on the basis of PII and documents relating to gate clearances. The Court authorized production on a rolling basis with an initial production no later than August 11, 2026, and a second production no later than August 31, 2026, with an aim of completing the index by that date if reasonably possible.

The Court further ordered the parties to consistently meet and confer in good faith to address and resolve any issues concerning these productions or the adequacy of the indices. Additionally, the Court ordered that if the parties remain unable to resolve their differences, or if they seek additional relief from the Court, they must file a concise joint statement no later than September 11, 2026, identifying the specific action requested. Finally, the Court ordered that Petitioner may request a motion hearing date for discovery that occurred before the cutoff date, to the extent Petitioner contends responses were insufficiently provided.

On July 24, 2026, Petitioner filed the instant motion to compel further responses from Respondents.

II.

Discussion

A motion to compel further responses may be brought based on responses to requests for admission ("RFA") that: (1) provide evasive or incomplete answers; or (2) make unmeritorious or overly-generalized objections. (Code of Civil Procedure ["CCP"] [1] § 2033.290(a).) However, a motion to compel further responses cannot compel the admission of matters already denied. (Holguin v. Superior Court (1972)

1.

Requests

a.

CDT Request Nos. 9-14

CDT RFA numbers 9 through 14 request admissions “that there are public records that include the term ‘[Search Term]’ that are responsive to VIAPATH’S [Date] CDT REQUESTS but which YOU did not produce to VIAPATH in response to VIAPATH’S [Date] CDT REQUESTS.” These six requests cover every combination of the search terms “VIAPATH” and “SECURUS” with dates February 24, March 6, and April 4.

The term “YOU” is defined to include CDT and (i) any and all of its present and former employees, evaluators, agents, representatives, accountants, or consultants; (ii) all CDT divisions, departments, units, or subordinates; and (iii) any other PERSON[2] or entity acting on its behalf.

The Term FEBRUARY 24 CDT REQUESTS is defined to mean the CPRA REQUESTS[3]

that VIAPATH[4]

served on CDT on February 24, 2025, and which are referenced in Paragraph 48 of the SAP. Likewise, MARCH 6 CDT REQUESTS refer to requests served on March 6, 2025, and APRIL 4 CDT REQUESTS refer to requests served on April 4, 2025.

CDT objects to these requests on the basis that the defined terms “YOU” and “VIAPATH’S [Date] CDT REQUEST” are overbroad, call for information beyond CDT’s custody, and are impermissibly compound. CDT also objects that the term “public records” is vague and ambiguous. Subject to these objections, CDT responds to each that it “admits it withheld exempt records pursuant to the California Public Records Act.”

CDT argues that it “expressly admits that responsive records were withheld in response to these RFAs.” (Opp. at 6-7.) CDT is incorrect. CDT’s answers are specifically phrased such that they avoid stating whether the withheld records were responsive to the particular CPRA requests identified in the RFAs or whether they contained the search terms at issue.

In the same way, CDT's answers do not state whether any of the records withheld had the search terms specified by the RFAs. The referenced CPRA requests are not ambiguous, and CDT's answers are evasive. CDT must directly admit or deny, for each search term and for each CPRA request covered by CDT RFA numbers 9 through 14, whether it withheld records that were responsive to that CPRA request and that contained that search term.

Therefore, CDT must admit or deny CDT RFA numbers 9 through 14.

b.

CDCR RFA No. 2

CDCR RFA number 2 requests admissions "that between April 22, 2025 and August 5, 2025, YOU did not search for emails responsive to Request No. 3, of the APRIL 22 CDCR REQUESTS."

The term "YOU" is defined to include CDCR and (i) any and all of its present and former employees, evaluators, agents, representatives, accountants, or consultants; (ii) all CDCR divisions, departments, units, or subordinates; and (iii) any other PERSON^[5] or entity acting on its behalf.

The Term APRIL 22 CDCR REQUESTS is defined to mean the CPRA REQUESTS^[6] that VIAPATH^[7] served on CDCR on April 22, 2025, and which are referenced in Paragraph 63 of the SAP.

CDCR objects to these requests on the basis that the defined terms "YOU" and "VIAPATH's APRIL 22 CDCR REQUEST" are overbroad, call for information beyond CDCR's custody, and are impermissibly compound. CDCR also objects that the terms "search" and "public records" are vague and ambiguous. Finally, CDCR objects on the grounds that "Request No. 3" is vague and ambiguous as it is not defined in the request. CDCR provides no substantive answer.

CDCR argues (a) the request is not full and complete in itself as there are defined terms and CDCR is required to review Request No. 3 of Petitioner's CPRA request to determine the subject matter of the request; (b) RFA No. 2 does not indicate the subject matter of "Request No. 3" and thus

the RFA is vague and ambiguous; (c) the definition of “YOU” is overbroad, including “all present employees,” all CDCR “divisions, departments units or subordinates,” and “any other PERSON or entity acting on its behalf.” (Opp. at 7.)

CDCR’s objections do not withstand scrutiny in this context.

Petitioner does not reference RFA number 3 of its CPRA submission for the purpose of incorporating new substantive definitions into the RFA; rather, the RFA seeks an admission about CDCR’s actions in responding to its own CPRA obligations. CDCR RFA number 2 is facially complete, and the use of defined terms does not render it otherwise. Nor does the fact that the RFA concerns conduct relating to an external document create ambiguity. The definitions used are sufficiently clear and not overbroad for purposes of an admission request.

CDCR must therefore admit or deny CDCR RFA number 2.

c.

CDCR RFA Nos. 12-19; CDT RFA Nos. 26-31

CDCR RFA numbers 12 through 19 and CDT RFA numbers 26 through 31 seek admissions that financial information disclosed by Securus is a public record, and that any such financial information cannot be exempt or privileged from disclosure if it has already been publicly disclosed to Petitioner.

Respondents argue that, when a CPRA action seeks records which may not be disclosable, requests seeking information about those records should not be permitted. (Opp. at 5.) Respondents also argue Securus must be included as a real party to adjudicate the disclosability of its financial records.

This is a closer question than the others above, but

Respondents are still incorrect. Petitioner is not seeking a determination regarding the ultimate disclosability of Securus’s financial records; rather, Petitioner seeks an admission addressing whether financial information already disclosed by Securus to Petitioner constitutes a public record and whether such information could still qualify for an exemption. If Respondents believe the records are not disclosable, Respondents may deny the RFAs. Likewise, Respondents may maintain their position that Securus’s participation is required before the Court can adjudicate any actual dispute concerning the disclosability of Securus’s financial information. But an RFA is not an

adjudication of that question. Respondents may deny or admit the RFAs while maintaining their position that Securus must be joined if Petitioner wishes to adjudicate the disclosability of Securus's financial information.

Respondents must therefore admit or deny CDCR RFA numbers 12 through 19 and CDT RFA numbers 26 through 31.

2.

Monetary Sanctions

As Respondents note, a request for sanctions must, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. (§ 2023.040.) Petitioner argues it did, but Petitioner is incorrect. Petitioner identified the parties against whom it seeks sanctions within its supporting memorandum, but not within the notice of motion. (See Mot. at 2, 16.)

However, the Court must still impose sanctions against a party who unsuccessfully opposes a motion to compel further response, unless the Court finds that party acted with substantial justification or other circumstances make the imposition of the sanction unjust.

Here, while Respondents did not act with substantial justification on every RFA, Respondents acted with substantial justification on CDCR RFA numbers 12 through 19 and CDT RFA numbers 26 through 31. Concerns about litigation regarding the status of Securus's financial information provided a reasonable basis to object to those RFAs. Therefore, CDCR acted with substantial justification on eight of nine RFAs, and CDT acted with substantial justification on six of twelve RFAs.

Accordingly, the Court declines to impose sanctions.

III.

Conclusion

The motion is GRANTED in part. CDCR must admit or deny CDCR RFA Nos. 2 and 12 through 19. CDT must admit or deny CDT RFA numbers 9 through 14 and 26 through 31. The Court declines to impose sanctions.

Date: September 17, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at SMCDEPT834@lacourt.ca.gov with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

All further statutory references are to the CCP unless otherwise stated.

[2]

PERSON is defined to mean any natural person, individual, corporation, proprietorship, partnership, association, joint venture, trust, company, association, organization, board, authority, governmental organization, firm, or other form of legal entity, organization, or arrangement.

[3]

CPRA REQUESTS are defined to refer to CPRA submissions to CDCR by any PERSON pursuant to Government Code section 79200.000, et seq.

[4]

VIAPATH includes Petitioner and (i) any and all of its present and former employees, evaluators, agents, representatives, accountants, or consultants; (ii) all Petitioner divisions, departments, units, or subordinates; or (iii) any other PERSON or entity acting on its behalf.

[5]

PERSON is defined to mean any natural person, individual, corporation, proprietorship, partnership, association, joint venture, trust, company, association, organization, board, authority, governmental organization, firm, or other form of legal entity, organization, or arrangement.

[6]

CPRA REQUESTS are defined to refer to CPRA submissions to CDCR by any PERSON pursuant to Government Code section 79200.000, et seq.

[7]

VIAPATH includes Petitioner and (i) any and all of its present and former employees, evaluators, agents, representatives, accountants, or consultants; (ii) all Petitioner divisions, departments, units, or subordinates; or (iii) any other PERSON or entity acting on its behalf.